

SOFTWARE AS A SERVICE AGREEMENT

This agreement (the "Agreement") is made between Threadneedle Estates Limited ("Customer") and Salter Row Consulting Limited ("Supplier").

1. Definitions and Interpretation

1.1 "Confidential Information" means all information disclosed by one party to the other that is marked confidential or would reasonably be understood to be confidential.

1.2 Clause headings are for convenience only and do not affect interpretation.

2. Services

2.1 Supplier shall provide the Services described in each Statement of Work with reasonable skill and care.

2.2 Supplier shall comply with all applicable laws in performing the Services.

3. Confidentiality

3.1 Each party shall keep the other party's Confidential Information confidential and shall not disclose it except as permitted by this clause.

3.2 The obligations in this clause survive termination or expiry of this Agreement for a period of two (2) years.

4. Indemnities

4.1 Supplier shall indemnify Customer against all losses arising from any claim that the Services infringe a third party's intellectual property rights.

4.2 The indemnified party shall notify the indemnifying party promptly of any claim.

5. Limitation of Liability

5.1 Nothing in this Agreement limits liability for death or personal injury caused by negligence, for fraud, or for any liability which cannot be limited by law.

5.2 Subject to the preceding sub-clause, each party's total aggregate liability under or in connection with this Agreement in any Contract Year shall not exceed two hundred (200) per cent of the Fees paid or payable in that Contract Year.

5.3 Neither party shall be liable for any indirect or consequential loss.

6. Intellectual Property

6.1 Supplier retains all intellectual property rights in the Services, the Platform and any deliverables.

6.2 Customer receives a non-exclusive licence to use the deliverables for its internal business purposes.

7. Non-Exclusivity

7.1 Nothing in this Agreement prevents Customer from procuring similar services from third parties, and this Agreement is non-exclusive.

8. Restrictive Covenants

8.1 For six (6) months after termination, Supplier shall not provide competing services to any Restricted Customer.

8.2 Supplier acknowledges that these restrictions are reasonable and necessary to protect Customer's legitimate business interests.

9. Assignment

9.1 Neither party may assign this Agreement without the prior written consent of the other, such consent not to be unreasonably withheld.

9.2 Either party may terminate this Agreement on thirty (30) days' notice if the other party undergoes a Change of Control.

10. Governing Law and Disputes

10.1 This Agreement and any dispute arising out of it shall be governed by the laws of Singapore, and the courts of Singapore shall have exclusive jurisdiction.

IN WITNESS WHEREOF the parties have executed this Agreement.